

Immigration Rules

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[Back to contents](#)

Immigration Rules: Appendix Student Student route

This route is for a person aged 16 or over who wants to study with a sponsor on a course of further or higher education, a pre-sessional English course, a recognised foundation programme or to take an elected post as a Student Union Sabbatical Officer.

The register of licensed student sponsors can be found at:

www.gov.uk/government/publications/register-of-licensed-sponsors-students

(<https://www.gov.uk/government/publications/register-of-licensed-sponsors-students>)

A person who is aged 16 or 17 and wants to study with a sponsor that is an Independent School on a course at Regulated Qualifications Framework 3 or Scottish Credit and Qualifications Framework 6 and above can apply as either a Student or as a Child Student (see Appendix Child Student).

A person who wants to study a course for 6 months or less without a student sponsor but with an accredited provider should apply under Appendix V: Visitor. A person aged 16 or over who wants to study an English Language course of 11 months or less without a student sponsor but with an accredited provider, should apply under Appendix Short-term Student.

Some Students can bring a dependent partner and dependent children to the UK, for example if they are studying at postgraduate level or on a government sponsored scheme.

The Student route is not a route to settlement.

Validity requirements for a Student

ST 1.1. A person applying for entry clearance or permission to stay as a Student must apply on the specified form on the gov.uk website as follows:

- (a) for applicants outside the UK applying for entry clearance, form “Student visa”; or
- (b) for applicants in the UK applying for permission to stay, form “Student”.

ST 1.2. An application for entry clearance or permission to stay as a Student must meet all the following requirements:

- (a) any fee and Immigration Health Charge must have been paid; and
- (b) the applicant must have provided biometrics when required; and
- (c) the applicant must have provided a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must provide a Confirmation of Acceptance for Studies reference number that was issued to them no more than 6 months before the date of application.

ST 1.3. If the applicant has, in the last 12 months before the date of application, completed a course of studies in the UK for which they have been awarded a scholarship or sponsorship by a

Government or international scholarship agency covering both fees and living costs for study in the UK, they must provide written consent in relation to the application from that Government or agency.

ST 1.4. If applying for permission to stay, the applicant must be in the UK on the date of application

ST 1.4A. If applying for permission to stay, the applicant must not have, or have last been granted, permission:

- (a) as a Visitor; or
- (b) as a Short-term Student; or
- (c) as a Parent of a Child Student; or
- (d) as a Seasonal Worker; or
- (e) as a Domestic Worker in a Private Household; or
- (f) outside the Immigration Rules

ST 1.5. The applicant must be at least 16 years old on the date of application.

ST 1.6. An application which does not meet all the validity requirements for a Student may be rejected as invalid and not considered.

Suitability requirements for a Student

ST 2.1. The applicant must not fall for refusal under Part Suitability.

ST 2.2. If the applicant is applying for permission to stay, they must not be:

- (a) in the UK in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
- (b) on immigration bail.

Eligibility requirements for a Student

Entry requirements for a Student

ST 3.1. A person seeking to come to the UK as a Student must apply for and obtain entry clearance as a Student before they arrive in the UK.

ST 3.2. A person applying for entry clearance as a Student must, if Appendix Tuberculosis applies, provide a valid medical certificate confirming that they have undergone screening for active pulmonary tuberculosis and that this tuberculosis is not present in them.

ST 3.3. A person must not be applying for entry clearance as a Student as a national or citizen of the following countries:

- (a) Afghanistan; or
- (b) Cameroon; or
- (c) Myanmar; or
- (d) Sudan

Date of application requirement for a Student

ST 4.1. An application for entry clearance must be made no more than 6 months before the start date of the course stated on the Confirmation of Acceptance for Studies.

ST 4.2. An application for permission to stay must be made no more than 3 months before the start date of the course on the Confirmation of Acceptance for Studies.

ST 4.3. An application for permission to stay must be for study on a course with a start date no more than 28 days after the expiry date of the applicant's previous permission.

Genuine Student requirement

ST 5.1. The applicant must be a genuine student.

Points requirement for a Student

ST 6.1. The applicant must be awarded all 70 points from the table below.

Points type	Relevant requirements to be met	Points
Study (must meet all)	• Confirmation of Acceptance for Studies requirement • Course requirement • Approved qualification requirement • Level of study requirement • Place of study requirement	50
Financial	Financial requirement	10
Language	Language requirement	10

Confirmation of Acceptance for Studies requirement

ST 7.1. The Confirmation of Acceptance for Studies must have been issued by a student sponsor whose licence is still valid on the date on which the application is decided.

ST 7.2. The Confirmation of Acceptance for Studies must not have been used in a previous application which was either granted or refused (but could have been relied on in a previous application which was rejected as invalid, made void or withdrawn).

ST 7.3. The student sponsor must not have withdrawn the offer to the applicant after the date that the Confirmation of Acceptance for Studies was issued.

ST 7.4. The Confirmation of Acceptance for Studies must contain the necessary information to confirm all the following requirements are met:

- (a) the course requirement; and
- (b) the approved qualification requirement; and
- (c) the level of study requirement; and
- (d) the place of study requirement.

ST 7.5. The Confirmation of Acceptance for Studies must state the cost of any accommodation provided by the sponsor and fees (and any payment already made) so that the financial requirement can be assessed.

ST 7.6. The Confirmation of Acceptance for Studies must show how the English language requirement has been met, and where the sponsor has assessed the applicant's English language ability, must include the information in ST 13.3. and ST 13.4.

Course requirement for a Student

ST 8.1. The application must be for a single course of study that meets the requirements in ST 8.2. unless it is one of the following:

- (a) a combined pre-sessional course which meets the requirements in ST 15.1. to 15.3.; or
- (b) a full-time, salaried, elected executive position as a Student Union Sabbatical Officer, where the applicant is either part-way through their studies or will fill the position in the academic year immediately after their graduation

ST 8.2. The application must be for a course which is one of the following:

- (a) a full-time course at degree level or above that leads to an approved qualification; or
- (b) a full-time course below degree level involving a minimum of 15 hours per week of classroom-based daytime study (08:00 to 18:00, Monday to Friday) that leads to an approved qualification; or
- (c) a full-time course involving a minimum of 15 hours per week of classroom-based daytime study that is a pre-sessional course; or
- (d) a part-time course above degree level that leads to an approved qualification where the Confirmation of Acceptance for Studies has been issued by a higher education provider with a track record of compliance; or

(e) a full-time course at degree level or above that is recognised by the qualification and language assessments provider as being equivalent to a UK higher education course where the Confirmation of Acceptance for Studies has been assigned by an overseas higher education institution or a higher education provider with a track record of compliance.

ST 8.3. If the course is an Association of Certified Chartered Accountants (ACCA) qualification or an ACCA Foundations in Accountancy qualification, the student sponsor must be an ACCA approved learning partner – student tuition at either Gold or Platinum level.

ST 8.4. If the Academic Technology Approval Scheme (ATAS) requirement in Appendix ATAS applies, the applicant must have a valid ATAS certificate and provide it with the application.

Approved qualification requirement for a Student

ST 9.1. The course of study, unless it is a pre-sessional course, must lead to an approved qualification which is one of the following:

- (a) validated by Royal Charter; or
- (b) awarded by a UK recognised body; or
- (c) covered by a legal agreement between a UK recognised body and another education provider or awarding body, which confirms both:
 - (i) the UK recognised body's independent assessment of the level of the student sponsor's or awarding body's programme compared to the Regulated Qualifications Framework or its equivalents; and
 - (ii) that the UK recognised body would admit any student who successfully completes the education provider's or the awarding body's named course onto a specific or a range of degree-level courses it provides; or
- (d) recognised by one or more recognised bodies through a formal articulation agreement

with the awarding body; or

(e) in England, Wales and Northern Ireland, is at Regulated Qualifications Framework level 3 or above; or in Scotland is accredited at Scottish Credit and Qualifications Framework level 6 or above; or

(f) an overseas qualification that the qualification and language assessments provider assesses as valid and equivalent to Regulated Qualifications Framework level 3 or above; or

(g) an aviation licence, rating or certificate issued by the UK's Civil Aviation Authority.

Level of study requirement for a Student

ST 10.1. If the Confirmation of Acceptance for Studies has been assigned by a probationary sponsor, the course must meet one of the following requirements unless it is a pre-sessional course:

(a) the course will be studied in England, Wales or Northern Ireland, and the applicant is aged under 18, and the course is at Regulated Qualifications Framework level 3 or above; or

(b) the course will be studied in England, Wales or Northern Ireland, and the applicant is aged 18 or over, and the course is at Regulated Qualifications Framework level 4 or above; or

(c) the course will be studied in Scotland, and the applicant is aged under 18, and the course is at Scottish Credit and Qualifications Framework level 6 or above; or

(d) the course will be studied in Scotland, and the applicant is aged 18 or over and the course is at Scottish Credit and Qualifications Framework level 7 or above.

ST 10.2. If the Confirmation of Acceptance for Studies has been assigned by a student sponsor, the course must meet one of the following requirements:

(a) the course will be studied in England, Wales or Northern Ireland and it is at Regulated Qualifications Framework level 3 or above; or

(b) the course will be studied in Scotland and it is at Scottish Credit and Qualifications Framework level 6 or above; or

(c) the course is a short-term study abroad programme in the UK as part of the applicant's qualification at an overseas higher education institution outside of the UK, and that qualification is recognised as being at UK bachelor's degree level or above by the qualification and language assessments provider; or

(d) the course is a pre-sessional course in English language at level B2 or above of the Common European Framework of Reference for Languages; or

(e) DELETED

(f) the course is being delivered under a partnership between a higher education institution and a research institute and is accredited at Regulated Qualifications Framework level 7 or above, or at Scottish Credit and Qualifications Framework Level 11 or above.

Place of study requirement for a Student

ST 11.1. All study that forms part of the course of study apart from permitted remote delivery must take place on the premises of the student sponsor or a partner institution unless the applicant is on a course-related work placement, a study abroad programme overseas, or a pre-sessional course.

Financial requirement for a Student

ST 12.1. If the applicant is applying for permission to stay and has been living in the UK with permission for 12 months or more on the date of application, they will meet the financial requirement and do not need to show funds.

ST 12.2. If the applicant is applying for entry clearance or permission to stay and is applying as a Student Union Sabbatical Officer they will meet the

financial requirement and do not need to show funds.

ST 12.3. If ST 12.2. does not apply, and the applicant is applying for entry clearance, or is applying for permission to stay and has been in the UK with permission for less than 12 months, the applicant must have the following funds:

(a) Studying in London

Type of Study	Funds required
Residential Independent School	Sufficient funds to pay outstanding fees (course fees and boarding fees) for one academic year
All other cases	Sufficient funds to pay any outstanding course fees as stated on the Confirmation of Acceptance for Studies, and £1529 for each month of the course (up to a maximum of 9 months)

(b) Studying outside London

Type of Study	Funds required
Residential Independent School	Sufficient funds to pay outstanding fees (course fees and boarding fees) for one academic year
All other cases	Sufficient funds to pay any outstanding course fees as stated on the Confirmation of Acceptance for Studies, and £1171 for each month of the course (up to a maximum of 9 months)

If the length of the applicant's course includes a part of a month, the time period will be rounded up to the next full month.

ST 12.4. If the applicant has paid a deposit to the student sponsor for accommodation arranged by the sponsor, this deposit (up to a maximum of £1529) can be offset against the funds required in ST 12.3.

ST 12.5. If the applicant has paid all or part of their course fees to their student sponsor this must be confirmed on the Confirmation of Acceptance for Studies, or the applicant must provide a receipt issued by the student sponsor confirming the amount of fees paid.

ST 12.6. The applicant must show that they have held the required level of funds for a 28-day period and as specified in Appendix Finance unless the applicant is relying on a student loan or official financial sponsorship which meets the requirements of FIN 8.3. in Appendix Finance

ST.12.7. If the funds held in the applicant's account on the date of decision fall substantially below the level of funds required at ST.12.3, the decision maker must be satisfied that the spent funds have been used to pay outstanding course fees, a deposit for accommodation or other costs associated with the proposed course of study in the UK

English language requirement for a Student

ST 13.1. An applicant must either:

(a) show English language ability on the Common European Framework of Reference for Languages in all 4 components (reading, writing, speaking and listening) of at least:

(i) level B2, where the applicant is studying a course at UK bachelor's degree level or above; or

(ii) level B1, where the applicant is studying a pre-sessional course or a course below UK bachelor's degree level; or

(b) have a GCSE level qualification or above in Welsh, Scots Gaelic, or Irish language.

ST 13.2. The applicant must show they meet the English language requirement as specified in Appendix English Language.

ST 13.3. Where the student sponsor has assessed that the applicant meets the English language requirement, they must state this and the method of assessment on the Confirmation of Acceptance for Studies.

ST 13.4. Where a Secure English Language Test is required, the name of the test provider, the unique reference number for the test and the score for each component tested (reading, writing, listening, speaking) must be included on the Confirmation of Acceptance for Studies.

Academic Progress requirement for a Student

ST 14.1. An applicant who has, or previously had, permission as a Student and is applying for permission to stay as a Student must have successfully completed the course of study for which they were last granted permission as a Student or one of the following applies:

- (a) one of the exceptions in ST 14.4.; or
- (b) they are applying to progress to a higher level course as specified in ST 14.3.(a) or (b).; or
- (c) they have successfully completed the course of study for which they were last granted permission as a Student or the course of study they were allowed to change to without applying for further permission on the Student route and will now be taking a course at the same level as specified at ST 14.3(c); or
- (d) they have successfully completed the course of study with their sponsor where the change of course was allowed without applying for further permission on the Student route.

ST 14.2. An applicant who has, or previously had, permission on the Student route and is applying for permission to stay as a Student must show academic progress from the previous courses of

study unless one of the exceptions in ST 14.4. applies.

ST 14.3. An applicant will show academic progress if they are applying for any of the following:

- (a) to progress from a bachelor's to master's level course which is part of an integrated master's course, where the applicant has been offered a place on a higher-level course by the student sponsor after an assessment of their academic ability; or
- (b) to progress from a master's degree to a PhD which is part of an integrated master's and PhD programme, where the applicant has been offered a place on a higher-level course by the student sponsor after an assessment of their academic ability; or
- (c) a course which is above the level of the previous course of study for which they were last granted permission unless:
 - (i) the student sponsor is a higher education provider with a track record of compliance; and
 - (ii) the course is at degree level or above; and
 - (iii) the new course is at the same level as the previous course of study; and
 - (iv) the student sponsor confirms that either:
 - (a) the new course of study is related to the applicant's previous course of study (meaning that it is either connected to the previous course, part of the same subject group, or involves deeper specialisation); or
 - (b) the combination of the previous course of study and the new course of study support the applicant's genuine career aspirations.
 - (c) the applicant has left an integrated master's or PhD programme having successfully completed the course leading to the award of the lower level qualification which formed a part of that programme.

ST 14.4. An applicant does not need to show academic progress where they:

(a) are applying to re-sit examinations or repeat modules under ST 14.5.; or

(b) have previously re-sat examinations or repeated modules under ST 14.5. and are applying to complete the course for which those examinations were re-sat or modules repeated; or

(c) are applying to:

(i) continue studying with their current student sponsor; or

(ii) move to a new student sponsor to enable them to follow their academic supervisor to another institution,

for the purpose of completing the PhD or other doctoral qualification for which study was undertaken during their last period of permission as a Student; or

(d) are making an application to move to a new student sponsor to complete a course of study begun at a student sponsor that has subsequently had its licence revoked; or

(e) are applying to undertake a role as a Student Union Sabbatical Officer; or

(f) after undertaking a period as a Student Union Sabbatical Officer are applying to complete the qualification for which the Confirmation of Acceptance for Studies was assigned before that period; or

(g) DELETED

(h) are applying to undertake an intercalated bachelor's or master's degree course or PhD where they are studying medicine, veterinary medicine and science, or dentistry as their principal course of study, or to complete their principal course, having completed a period of intercalation; or

(i) are applying to undertake a study abroad programme or work placement which is both integral to and assessed as part of the course, or to complete their course, having completed a study abroad programme or work placement.

ST 14.5. If the applicant is sponsored by a probationary sponsor, they must not previously have re-sat the same examination or repeated the same module, more than once (they can only do so twice).

Combined Pre-sessional Course requirement for a Student

ST 15.1. A single Confirmation of Acceptance for Studies can be assigned for a combined pre-sessional course and a main course at degree level or above by a higher education provider with a track record of compliance if:

- (a) the pre-sessional course lasts no longer than 3 months; and
- (b) the main course will begin no more than 1 month after the pre-sessional course ends.

ST 15.2. If the applicant has been assessed as having language ability of at least level B2 in order to meet the English language requirement at ST 13.1., the Confirmation of Acceptance for Studies must confirm that the applicant has an unconditional offer of a place on the main course.

ST 15.3. If the applicant has been assessed (which must be by a method other than assessment by the student sponsor) as having language ability of at least level B1 in order to meet the English language requirement at ST 13.1., the Confirmation of Acceptance for Studies must confirm that the student sponsor is satisfied that the applicant will have at least level B2 at the end of the pre-sessional course.

Postgraduate Doctor or Dentist requirement

ST 16.1. DELETED

Work Placement requirement

ST 17.1. A course that includes a work placement must lead to an approved qualification and the Confirmation of Acceptance for Studies must be

assigned by a student sponsor (who is not a probationary sponsor) if the course of study is below degree level.

ST 17.2. A work placement must be assessed as an integral part of the course and must not be longer than one third of the total length of the course, except when there is a statutory requirement that it must be so, or where ST 17.3. applies.

ST 17.3. A work placement on a course that is at degree level or above:

- (a) at a higher education provider with a track record of compliance; or
- (b) at an overseas higher education institution in the UK; or
- (c) as part of a qualification recognised as being at UK bachelor's degree level or above by a student undertaking a study abroad programme in the UK,

must not be longer than half of the total length of the course of study.

ST 18.1. DELETED.

ST 18.2. DELETED.

Maximum period of study requirement for a Student

ST 19.1. If the course is below degree level, the grant of permission must not lead to the applicant being granted more than two years' permission as a Student to study courses below degree level from the age of 18 unless ST 19.2. applies.

ST 19.2. If the course is below degree level but is subject to a regulatory requirement by the Maritime and Coastguard Agency that the applicant must spend at least 12 months at sea as a part of that course, the grant of permission must not lead to the applicant being granted more than 3 years' permission as a Student from the age of 18 to study courses below degree level.

ST 19.3. If the course is at degree level, the grant of permission must not lead to the applicant being granted more than five years' permission as a Student from the age of 18 to study courses at degree level unless the course of study is one of those listed at ST 19.4.

ST 19.4. The five-year maximum period of study at degree level in ST 19.3. will not apply if the applicant has a Confirmation of Acceptance for Studies that has been assigned for a course of study in one of the following subjects:

- (a) architecture; or
- (b) medicine; or
- (c) dentistry; or
- (d) veterinary medicine and science; or
- (e) music at a music college that is a member of Conservatoires UK; or
- (f) law, where the applicant has completed a course at degree level or above and is applying for a course of study which is:
 - (i) a law conversion course validated by the Solicitors Regulation Authority and the Bar Standards Board in England and Wales; or
 - (ii) a Masters in Law (MLaw) in Northern Ireland; or
 - (iii) an accelerated graduate LLB in Scotland.

ST 19.5. DELETED

ST 19.6. When calculating the period of permission granted under ST 19.1. to ST 19.5., any period of permission as a Student extended under section 3C of the Immigration Act 1971 will count towards the period of permission granted.

Documents used to obtain an offer requirement for a Student

ST 20.1. The applicant must provide evidence of the qualifications or references they used to obtain the offer of a place on the course of study from the student sponsor, unless either:

- (a) the applicant is applying for a course of study at degree level or above and is sponsored by a higher education provider with a track record of compliance; or
- (b) ST 22.1. applies.

ST 20.2. The evidence of each qualification must be one of the following:

- (a) the certificate(s) of qualification; or
- (b) the transcript of results; or
- (c) a print out of the qualification or transcript results from the awarding body's online checking service.

ST 20.3. Where the applicant has provided a print out of qualifications or transcript results from the awarding body's online checking service, the decision maker may require the applicant to provide the certificate of qualification or transcript of results.

Parental consent requirement for a Student

ST 21.1. The applicant must meet the parental consent requirement for applicant not applying as a dependent child in Appendix Children.

ST 21.2. DELETED

Differential evidence requirement for a Student

ST 22.1. Evidence to show that the applicant meets the financial requirement and the requirement to provide documents used to obtain an offer does not need to be provided with the application (but may be required by the decision maker) if the applicant is applying from the country or territory where they are living, or from in the UK, and the applicant either:

- (a) holds a passport which shows they are registered as a British National (Overseas), or which was issued by the competent authorities of Hong Kong SAR, Macau SAR or Taiwan (which includes the number of the identification card issued by the competent authority in Taiwan); or

(b) is a national of any of the following:

Australia
Austria
Bahrain
Barbados
Belgium
Botswana
Brazil
Brunei
Bulgaria
Cambodia
Canada
Chile
China
Croatia
Republic of Cyprus
Czech Republic
Denmark
The Dominican Republic
Estonia
Finland
France
Germany
Greece
Hungary
Iceland
Indonesia
Ireland
Italy
Japan
Kazakhstan
Kuwait
Latvia

Liechtenstein

Lithuania

Luxembourg

Malaysia

Malta

Mauritius

Mexico

Netherlands

New Zealand

Norway

Oman

Peru

Poland

Portugal

Qatar

Romania

Serbia

Singapore

Slovakia

Slovenia

South Korea

Spain

Sweden

Switzerland

Thailand

Tunisia

United Arab Emirates

United States of America

Information on the Confirmation of Acceptance for Studies requirement

ST 23.1. The student sponsor must provide all the following information about the course of study on the Confirmation of Acceptance for Studies:

- (a) title of course; and
- (b) academic level of course; and
- (c) course start and end dates; and
- (d) hours of study per week, including confirmation on whether the course is part-time or full-time; and
- (e) the address of the main place of study; and
- (f) the cost of accommodation and fees; and
- (g) if the student sponsor has assessed the applicant by use of one or more references, details of the references assessed; and
- (h) if the course involves a work placement, details of any work placement relating to the course; and
- (i) if the course will be provided by an education provider which is not the student sponsor, details of the partner institution; and
- (j) whether the ATAS requirement in Annex ATAS applies; and
- (k) DELETED
- (l) a statement of how the student sponsor has assessed the applicant's English language ability including, where relevant, the applicant's English language test scores in all 4 components (reading, writing, speaking and listening); and
- (m) if the course is part of a study abroad programme, the name and address of the partner institution; and
- (n) if the applicant is applying for a full-time, salaried, elected executive position as a Student Union Sabbatical Officer and is part-way through their studies or being sponsored to fill the position in the academic year immediately after their graduation; and
- (o) DELETED
- (p) if the applicant has previously been granted permission as a Student, confirmation that the new course meets the academic progress requirement from the previous course as required by ST 14.1. to ST 14.5.

Decision on application for a Student

ST 24.1. If the decision maker is satisfied that all the suitability and eligibility requirements for a Student are met, the application will be granted; otherwise, the application will be refused.

ST 24.2. If the application is refused, the person can apply for an Administrative Review under Appendix AR.

Period and conditions of grant for a Student

ST 25.1. The grant of permission will be subject to the following conditions:

- (a) no access to public funds; and
- (b) no work, except as specified in ST 26; and
- (c) no study, except as specified in ST 27.
- (d) DELETED

ST 25.2. The applicant will be granted permission for the duration of the course as specified on the Confirmation of Acceptance for Studies plus the relevant periods specified in ST 25.3.

ST 25.3. The period of permission granted to an applicant before the start of the course who is applying for entry clearance will be either:

- (a) the relevant period before the course date which is set out in the table below, if entry clearance is granted 1 month or more before the start date of the course; or
- (b) 7 days before the intended date of travel, if entry clearance is granted less than 1 month before the start date of the course; or
- (c) with immediate effect, if entry clearance is granted less than 7 days before the intended date of travel and less than 1 month before the start date of the course.

The applicant will be granted a period of permission dependent on the type and length of course as in

the table below:

Type of Course	Period granted before course start date	Period granted after course end date
A course of 12 months or longer	1 Month	4 Months
A course of 6 months or longer but shorter than 12 months	1 Month	2 Months
A pre-sessional course of less than 6 months	1 Month	1 Month
A course of less than 6 months in length which is not a pre- sessional course	7 Days	7 Days

Work Conditions for a Student

ST26.1. The applicant will be granted permission with the following employment conditions:

Type of study	Employment conditions
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Student following a full-time course of degree level or above study:	20 hours per week during term-time (full-time employment permitted outside of term-time)
• sponsored by a higher education provider with a track record of compliance; or	
• sponsored by an overseas higher education institution to undertake a short-term study abroad programme in the UK	

Student undertaking a full-time course below degree level study sponsored by a higher education provider with a track record of compliance	10 hours per week during term-time (full-time employment permitted outside of term-time)
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All other study, including all part-time study	No employment permitted
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ST 26.2. Students are permitted to undertake work related to a work placement, assessed as an integral part of the course, that meets the requirements at ST 17.1. to ST 17.3.

ST 26.3. Employment as an elected Student Union Sabbatical Officer or elected National Union of Students (NUS) position is permitted for up to 2 years if the Confirmation of Acceptance for Studies was assigned for this purpose.

ST 26.4. DELETED.

ST 26.5. A Student is not allowed to do any of the following:

- (a) be self-employed or engage in business activity unless ST 26.8 applies; or
- (b) work as a professional sportsperson (including as a sports coach); or
- (c) work as an entertainer; or
- (d) work in a position which would fill a permanent full-time vacancy unless ST 26.6.

applies.

ST 26.6. A Student who makes a valid application for permission to stay under the Skilled Worker, or Graduate route, may start employment in a full-time permanent vacancy either up to 3 months prior to the course completion date (for the Skilled Worker route) or once they have successfully completed their course of study (for the Graduate route), provided all of the following apply:

- (a) the Student is studying a full-time course of study at degree level or above with a higher education provider with a track record of compliance; and
- (b) the application as a Skilled Worker, or Graduate, was made when the applicant had permission as a Student; and
- (c) a decision has not been made on the Skilled Worker, or Graduate, application, or where a decision has been made, any Administrative Review against a refusal of that application has not been finally determined.

ST 26.7. DELETED

ST 26.8. A Student may be self-employed, if:

- (a) they have applied for permission on the Innovator Founder route; and
- (b) that application is supported by an endorsement from an Innovator Founder endorsing body; and
- (c) the application was made when the applicant had permission as a Student; and
- (d) a decision has not been made on the application, or where the application has been refused, any Administrative Review against a refusal has not been finally determined.

Study Conditions

ST 27.1. A Student must only study with the student sponsor which assigned the Confirmation of Acceptance for Studies unless either:

- (a) the Student is studying at a partner institution of their student sponsor; or
- (b) the Student has made an application for permission to stay while they have permission as a Student:
 - (i) which is supported by a valid Confirmation of Acceptance for Studies assigned by a student sponsor; and
 - (ii) the application has not yet been decided, or any Administrative Review against that decision has not been determined; and
- (iii) the Student will be studying at the student sponsor that assigned the Confirmation of Acceptance for Studies.

ST 27.2. A Student must only study on the course of study, or courses where a combined pre- sessional course is being taken, for which the Confirmation of Acceptance for Studies was assigned unless ST 27.3. applies.

ST 27.3. A Student may begin studying on a new course with their current student sponsor if:

- (a) the student sponsor is a higher education provider with a track record of compliance; and
- (b) the Student has not completed the course that the Confirmation of Acceptance for Studies was assigned for; and
- (c) the new course is not at a lower qualification level than the course the Confirmation of Acceptance for Studies was assigned for unless they were last granted permission to study an integrated master's or PhD programme and will now be studying on the lower level qualification of that programme.; and
- (d) the course is at degree level or above; and
- (e) any new course at degree level can be completed within the current period of permission; and
- (f) the student sponsor confirms that new course is related to the course for which the Confirmation of Acceptance for Studies was assigned or supports the Student's genuine career aspirations.

ST 27.4. The Student may study on a study abroad programme overseas that is an integral and assessed part of the course of study named on the Confirmation of Acceptance for Studies.

ST 27.5. Supplementary study is permitted.

ST 27.6. Study is subject to the ATAS condition in Appendix ATAS.

ST 27.7. The Student must not study at a State School or Academy (except for a voluntary grammar school with boarding in Northern Ireland) but if the Student has been granted permission to study at a student sponsor which becomes a State School or Academy during that period of permission the Student may complete the course for which the Confirmation of Acceptance for Studies was assigned.

Dependants of a Student

Validity requirements for a dependent partner or dependent child of a Student

ST 28.1. A person applying for entry clearance or permission to stay as a partner or child of a Student must apply on the specified form on the gov.uk website as follows:

Location of Partner or Child	Specified form
Applicant outside the UK	Dependant partner visa Dependant child visa
Applicant inside the UK	Dependant partner Dependant child

ST 28.2. An application for entry clearance or permission to stay as a partner or child of a Student must meet all the following requirements:

- (a) any fee and Immigration Health Charge must have been paid; and

- (b) the applicant must have provided biometrics when required; and
- (c) the applicant must have provided a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must be applying as partner or child of a person who:
 - (i) has made a valid application for entry clearance or permission to stay on the Student route that has not been decided; or
 - (ii) has entry clearance or permission to stay on the Student route.

ST 28.3. If the applicant has in the 12 months before the date of application completed a course of studies in the UK for which they have been awarded a scholarship or sponsorship by a Government or international scholarship agency covering both fees and living costs for study in the UK, they must provide written consent to the application from that Government or agency.

ST 28.4. If applying for permission to stay, the applicant must be in the UK on the date of application.

ST 28.4A. If applying for permission to stay, the applicant must not have, or have last been granted, permission:

- (a) as a Visitor; or
- (b) as a Short-term Student; or
- (c) as a Parent of a Child Student; or
- (d) as a Seasonal Worker; or
- (e) as a Domestic Worker in a Private Household; or
- (f) outside the Immigration Rules.

ST 28.5. An application which does not meet all the validity requirements for a partner or child of a Student may be rejected as invalid and not considered.

Suitability requirements for a dependent partner or dependent child of a Student

ST 29.1. The suitability requirements for a partner or child on the Student route are that they must not fall for refusal under Part Suitability.

ST 29.2. A person applying for permission to stay must not be:

- (a) in the UK in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
- (b) on immigration bail.

Eligibility requirements for a dependent partner or dependent child of a Student

Entry requirement for a dependent partner or dependent child of a Student

ST 30.1. A person seeking to come to the UK as a partner or child of a Student must apply for and obtain entry clearance as a partner or child before they arrive in the UK.

ST 30.2. A person applying for entry clearance as the partner or child of a Student must, if Appendix Tuberculosis applies, provide a valid medical certificate confirming that they have undergone screening for active pulmonary tuberculosis and that this tuberculosis is not present in them.

Student course requirement for a dependent partner or dependent child of a Student

ST 31.1. Unless they are a child who meets the requirements in ST 31.2., the applicant must be the partner or child of a person who is:

- (a) a Student who has received a scholarship or sponsorship from a Government for study in the UK and has, or is applying for, permission to study on a full-time course of 6 months or longer; or
- (b) a full-time Student who has, or is applying for, permission to study a postgraduate level course of 9 months or longer at a higher

education provider with a track record of compliance and, if the course start date is on or after 1 January 2024, the provider has confirmed the course is a PhD or other doctoral qualification, or a research-based higher degree; or

(c) DELETED

(d) a Student who has, or had within the last 3 months before the date of application, permission to study on a full-time course of 6 months or longer, and is now applying for permission to study a full-time course of 6 months or longer where either:

- (i) the partner or child already has, or had within the last 3 months before the date of application, permission as a dependent partner or dependent child of the Student; or
- (ii) the child was born since the last grant of permission to the Student, where the Student and partner or child are applying at the same time.

ST 31.2. If the applicant is a child who does not meet the requirement at ST.31.1., they must instead meet one of the following requirements:

(a) the applicant must have been born during the Student's current period of permission to study a full-time course of 6 months or longer and they are applying for permission during that period; or

(b) where the Student has permission to re-sit examinations or repeat a module of a full-time course of 6 months or longer, the applicant must have been born either:

- (i) during the Student's original period of permission; or
- (ii) during the period of permission granted for re-sitting examinations or to repeat a module; or

(c) the applicant must have been born no more than 3 months after the expiry of the Student's most recent permission and must be making an application for entry clearance within 6 months

of the expiry of their parent's most recent permission.

Relationship requirement for dependent partner of a Student

ST 32.1. The applicant must be the partner of a Person (P) where one of the following applies:

- (a) P has permission to stay on the Student route; or
- (b) P is, at the same time, applying for (and is granted) entry clearance or permission to stay on the Student route.

ST 32.2. The requirements of Appendix Relationship with Partner must be met.

ST 32.3. DELETED

ST 32.4. DELETED

ST 32.5. DELETED

ST 32.6. DELETED

Financial requirement for dependent partner of a Student

ST 33.1. If the applicant is applying for permission to stay and has been living in the UK with permission for 12 months or longer on the date of application, they will meet the financial requirement and do not need to show funds.

ST 33.2. If the applicant is applying for entry clearance or permission to stay, where they have been in the UK less than 12 months, the applicant or their partner (who must be a Student or applying at the same time as a Student) must have the funds specified in the table below, for a total of 9 months, or for the period of permission applied for by the applicant, whichever is the shorter.

Place of Student's study	Funds required by a dependent partner
Studying in London	£845 per month
Studying outside London	£680 per month

ST 33.3. The funds must be in addition to the funds required for the Student to meet the financial requirement, and the funds required to meet the financial requirement for any dependent child who is applying at the same time, or is already in the UK as a dependent child of the Student.

ST 33.4. Unless the applicant is relying on financial sponsorship from a Government or international scholarship agency that covers the living costs of the applicant and the Student, they must show that they have held the required level of funds for a 28-day period and as specified in Appendix Finance.

ST 33.5. Unless the applicant is applying at the same time as the Student and ST 22.1. applies, the applicant must show that they have the required funds as specified in Appendix Finance.

ST.33.6. If the funds held in the applicant's account on the date of decision fall substantially below the level of funds required at ST 33.2, the decision maker must be satisfied that the spent funds have been used to pay a deposit for accommodation or other costs associated with the proposed period of permission in the UK.

ST 34.1. DELETED

ST 34.2. DELETED

ST 34.3. DELETED

ST 35.1. DELETED

ST 36.1. DELETED

ST 36.2. DELETED

Requirements for a dependent child of a Student

ST 36A.1. The applicant must meet the following requirements for a dependent child in Appendix Children:

- (a) relationship requirement: entry clearance and permission to stay; and
- (b) care requirement; and
- (c) age and independent life requirement.

Financial requirement for dependent child of a Student

ST 37.1. If the applicant is applying for permission to stay and has been in the UK with permission for 12 months or longer on the date of application, they will meet the financial requirement and do not need to show funds.

ST 37.2. Where the applicant is applying for entry clearance, or permission to stay and they have been in the UK less than 12 months on the date of application, the applicant or their parent must have the funds specified in the table below, for a total of 9 months, or for the period of permission applied for by the applicant, whichever is the shorter.

Place of Student's study	Funds required for a dependent child
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Studying in London	£845 per month
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Studying outside London	£680 per month
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ST 37.3. The funds must be in addition to the funds required for the Student to meet the financial requirement, and the funds required for any dependant of the Student, who is applying at the same time as the applicant or is already in the UK as a dependant of the Student.

ST 37.4. Where ST 37.2. applies, unless the applicant is relying on financial sponsorship from a Government or international scholarship agency that covers the living costs of the Student and the applicant, the required level of funds must have been held for a 28-day period and as specified in Appendix Finance.

ST.37.5. If the funds held in the applicant's account on the date of decision fall substantially below the level of funds required at ST 37.2, the decision maker must be satisfied that the spent funds have been used to pay a deposit for accommodation or other costs associated with the proposed period of permission in the UK.

Decision on an application as a dependent partner or dependent child of a Student

ST 38.1. If the decision maker is satisfied that all the suitability and eligibility requirements for the dependent partner or dependent child of a Student are met, the application will be granted, otherwise the application will be refused.

ST 38.2. If the application is refused, the person can apply for an Administrative Review under Appendix AR.

Period and conditions of grant for a dependent partner or dependent child of a Student

ST 39.1. A dependent partner will be granted permission which ends on the same date as the Student's permission.

ST 39.2. A dependent child will be granted permission which ends on the same date as whichever of their parents' permission ends first.

ST 39.3. The grant will be subject to all the following conditions:

- (a) no access to public funds; and
- (b) work (including self-employment and voluntary work) is permitted except:

- (i) where the dependant meets the requirement at ST 31.1.(d) and the Student has been granted less than 9 months' permission, unless that is to continue a course of study where they had previously been granted at least 9 months' permission; or
 - (ii) where the dependant meets the requirement at ST 31.1.(d) and the Student is studying a course below degree level; or
 - (iii) no employment as a professional sportsperson (including as a sports coach); and
- (c) study is permitted, subject to the ATAS condition in Appendix ATAS (if the study will commence when the partner or child is aged over 18).
- (d) DELETED
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